

Unit A1

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Key Differences: Family Court vs. Adult Criminal Court

The first main difference is the objective and atmosphere. The Family Court deals with sensitive personal issues that are often emotionally charged. Unlike criminal proceedings, where the focus is on guilt or innocence, the Family Court is primarily concerned with safeguarding and promoting the welfare of the child.

Another difference is the family court uses a non-adversarial approach to litigation. Whereas criminal court is adversarial in the quest to satisfy the burden of proof or to show that the burden of proof of beyond a reasonable doubt has not been reached.

Also due to the sensitive nature of the topic and human right of the family- most proceedings are held in private, unlike the criminal court where the public are allowed to attend.

Feature	Adult Criminal Court	Family Court
Primary Objective	To determine guilt or innocence and maintain law and order.	To safeguard and promote the welfare of the child, which is the court's paramount consideration.
Privacy	Generally open to the public to ensure transparency.	Proceedings are held in private due to the sensitive nature of the issues
Tone and Atmosphere	Adversarial and formal.	Non-adversarial, though often emotionally charged and dealing with life-changing decisions.
Judicial Approach	Punitive or rehabilitative for the defendant.	Welfare-based, following a "no delay" principle (s1(2)) to prevent prejudice to the child.

Professional	Key role	statutory authority
Children's Guardian	they are appointed in "specified proceedings" (mostly public law cases like care and supervision) unless the court is satisfied it is not necessary. They may also be involved in complex private law cases if the court makes the child a party under Rule 16.4	Section 41 Children Act 1989; Part 16 FPR.
Children and family reporter	The court involves them when it requires a Section 7 welfare report, typically in private law proceedings (such as disputes over Child Arrangements Orders)	Section 7 Children Act 1989; Rule 16.33 FPR.
Welfare Officer	They are involved instead of a CFR when the court asks the Local Authority to provide the Section 7 report. This usually happens if the authority has had statutory involvement with the child in the last 12 weeks	Section 7(1)(b) Children Act 1989.

Note the key difference between the welfare principle in the Children Act 1989 and that set out in the Adoption and Children Act 2002.

The key difference between the welfare principle in the Children Act 1989 and the Adoption and Children Act 2002 lies in the timeframe the court must consider when evaluating the child's best interests.

Children Act 1989: Under Section 1(1), the child's welfare is the court's paramount consideration when determining any question regarding a child's upbringing or the administration of their property. This principle generally focuses on the child's needs during their minority. Until 16 in most cases.

Adoption and Children Act 2002: Under Section 1(2), the welfare principle is extended, stating that the paramount consideration must be the child's welfare "throughout his life"

The main differences between Section 1 of the Children Act 1989 (CA 1989) and Section 1 of the Adoption and Children Act 2002 (ACA 2002) centre on the timeframe of the child's welfare, the specific factors in their respective welfare checklists, and the presumptions regarding parental involvement.

Main Differences Between the Acts:

- Timeframe of the Welfare Principle: as stated earlier
- The Welfare Checklist: While both acts use a "welfare checklist," the ACA 2002 checklist (s.1(4)) is more specialised for adoption. It specifically requires the court to consider the likely effect on the child of having ceased to be a member of the original family and becoming an adopted person. It also mandates a deeper consideration of the child's relationship with relatives and other significant people (s.1(4)(f)) to a degree not expressly required by the CA 1989.
- Presumption of Parental Involvement: The CA 1989 includes a presumption that the involvement of each parent in the life of the child will further the child's welfare, unless it can be shown that such involvement would put the child at risk of harm. The ACA 2002 does not share this presumption; instead, it focuses on whether dispensing with parental consent is necessary to require the child's welfare throughout their life.
- Range of Powers: Under the ACA 2002, the court is required to consider the entire range of powers available under both the 2002 Act and the 1989 Act when making a decision relating to adoption.

Unit A2

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Specific issues Order	Prohibited steps Order	Enforcement order	Declaration of Parentage	Child Arrangement Order
Change of the child surname	To stop the father applying for an international passport- Mother fear of abduction	Child Arrangement order breach- LIP end up going for a variation rather than pursuing enforcement	The Father wanted to be taken off the birth certificate and stop paying child maintenance . DNA test from approved court third party is required	The parties cannot agree on how to divide time spent with their child
What school the child should attend				

1.How does the Children Act 1989 define parental responsibility?

Under the Children Act 1989, Section 3(1), parental responsibility is defined as "all the rights, duties, powers, responsibilities and authority which by law a parent of a child has in relation to the child and his property"

2. More than one person can hold parental responsibility at any one time. Explain the effect of this and how the responsibility can be exercised by one person in relation to the other.

Under the Children Act 1989, it is common for more than one person to hold parental responsibility (PR) for a child at the same time. A significant effect of this rule is that a person who currently holds PR does not lose it simply because another person or authority subsequently acquires it. Furthermore, the law treats all holders of PR as having equal status; the Court of Appeal has confirmed that no party has dominance, primacy, or priority over any other holder in the exercise of those responsibilities.

Independent Action: As a general rule, where multiple people hold PR, each of them is entitled to act alone and without the other(s) in meeting that responsibility. This is particularly common in day-to-day realities where parents live in separate households and one is the primary carer. Can exercise PR to safeguard their child and refuse contact with someone with PR.

Cooperation: Although the law permits independent action, the court expects all PR holders to work cooperatively to make decisions that promote the child's welfare.

Statutory Exceptions (Requirement for Joint Consent): The right to act alone is restricted by specific laws requiring the written consent of every person with PR (or the leave of the court) for major decisions, most notably changing a child's surname or removing the child from the United Kingdom.

Conflict Resolution: Because no holder has primacy over the other, if the parties reach an impasse and cannot agree on a significant issue, they have no option but to come to court to seek a resolution.

Compatibility with Orders: Holding PR does not entitle a person to act in any way that would be incompatible with a court order made under the Children Act 1989. For instance, a Prohibited Steps Order or Specific Issue Order can be used to restrict or determine the exercise of PR by a specific holder

3. Give five examples of the rights or responsibilities of a parent who holds parental responsibility.

Managing Education and Information: Parents are responsible for determining the child's education, including the choice of school. Holding parental responsibility also entitles a parent to access the child's health and education records and information

A parent has the right to determine the religious persuasion in which the child is brought up

The act of choosing a name for a child and complying with registration duties is an exercise of parental responsibility

a parent has the right to agree or refuse consent to change the child's surname

To consent/refuse consent to medical treatment

Parental Responsibility (PR) Reference Table

Person or Authority	PR at Birth?	How PR is Acquired	How PR is lost
Mother	yes	A mother automatically has PR from the moment of birth.	PR cannot be removed from a mother unless the child is adopted or a parental order is made.
Father (Married)	yes	A father has PR automatically if he is married to or in a civil partnership with the mother at the time of birth. This also applies if they marry after the birth.	Like the mother, a married father can only lose PR through adoption or a parental order.
Father (Unmarried)	no	He acquires PR by: 1) Being registered on the birth certificate (after Dec 2003); 2) A formal PR agreement with the mother; 3) A PR order from the court; or 4) Obtaining a "lives with" Child Arrangements Order.	PR can be terminated by a court order if the court is satisfied it is in the child's best interests.
Special Guardian	no	PR is acquired when the court makes a Special Guardianship Order (SGO).	PR is lost if the SGO is discharged by the court.
Step-parent	no	If married to or in a civil partnership with a parent with PR, they acquire it by agreement of all existing PR holders or by a court order. It is also granted automatically if they obtain a "lives with" order.	PR is lost if the PR order or agreement is brought to an end by the court or if the "lives with" order is discharged.
Guardian (on death)	no	By being appointed in a will or formal statement by a parent with PR, or by court appointment if no one has PR for the child. PR takes effect upon the death of the appointer.	Lost through revocation by the appointer before death, disclaimer by the guardian, or court order.
Adoptive Parent	no	They acquire PR to the exclusion of all others once a final Adoption Order is made.	An Adoption Order is irrevocable except in "wholly exceptional circumstances"
Local Authority	no	Acquired through an Emergency Protection Order (EPO), an Interim Care Order (ICO), or a Care Order (CO).	PR is lost when the relevant order expires or is discharged.
Non-Parent Carer	no	Acquired by being named in a Child Arrangements Order as a person with whom the child is to live.	PR only remains in force for as long as the "lives with" order is in effect.
Prospective Adopter	no	They acquire PR when the child is formally placed with them for adoption (shared with the LA and parents).	Lost if the placement order is revoked or the child is returned to the agency.

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Unit A3 Welfare Checklist

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Under **Section 1(3) of the Children Act 1989**, the court must have regard to the following factors, commonly known as the "**welfare checklist**", when determining certain questions regarding a child's upbringing:

- **(a) The ascertainable wishes and feelings of the child concerned** (considered in the light of his age and understanding).
- **(b) His physical, emotional and educational needs.**
- **(c) The likely effect on him of any change in his circumstances.**
- **(d) His age, sex, background and any characteristics of his** which the court considers relevant.
- **(e) Any harm which he has suffered or is at risk of suffering.**
- **(f) How capable each of his parents, and any other person** in relation to whom the court considers the question to be relevant, is of meeting his needs
- **(g) The range of powers available to the court** under the Act in the proceedings in question.

q1. From completed cases you have looked at, list all the documents that refer to the welfare checklist.

q2. In a care case, when assisting magistrates with drafting their reasons which two elements of the welfare checklist are you likely to have to consider in most detail?

In a care case, when assisting magistrates with drafting their reasons, you are likely to have to consider checklist elements **(e) any harm which the child has suffered or is at risk of suffering** and **(f) how capable each of his parents... is of meeting his needs** in the most detail.

These two elements are prioritized because they directly correlate with the **statutory "Threshold" criteria** that must be crossed before a care order can be made

q3. What is the difference between the elements of s.1(3)(b) and s.1(3)(f)?

The difference between **Section 1(3)(b)** and **Section 1(3)(f)** of the Children Act 1989 lies in the focus of the evaluation: one identifies the **requirements of the child**, while the other assesses the **abilities of the adults** to meet those requirements

Unit A4 Court Considerations

q1. From the case papers you have looked at, list three examples of the court actively applying the principle that delay is likely to prejudice the welfare of the child. For each example, at what stage of the proceedings was the delay principle considered?

q2. Why might delay be harmful to a child?

Delay is generally considered harmful to a child in family proceedings because both the Children Act 1989 and the Adoption and Children Act 2002 establish the legal principle that **any delay in reaching a decision is likely to prejudice the child's welfare**.

Specific reasons why delay is harmful include:

- **Developmental Impact:** For babies and young children, the passage of even a few weeks or months is a matter of **real significance to their physical and emotional development**.
- **Identity and Certainty:** Undue delay in proceedings, such as those establishing paternity, can create **prolonged uncertainty for the child regarding their personal identity**, which may even constitute a violation of their human rights.
- **Bonding:** In cases involving newborns or young children, delay can disrupt the **formation of essential parent-child bonds** and hinder the child's ability to achieve a permanent and stable home environment.
- **Safety Risks:** Delay can **undermine protective systems** and safety plans that are specifically designed to keep a child safe from suffering further harm

q1. Provide an example from the case papers you have looked at where the court actively had regard to the principle of no order.

q2. What is the approach suggested in the case of *Re K (supervision orders)* 1999 2 FLR 303 in relation to the principles of no order?

In the case of **Re K (Supervision Orders) 2 FLR 303, FD**, the court suggested an approach that balances the duty to protect the child with the **"no order" principle**, which emphasises minimal necessary intervention in family life. According to the sources, the approach involves the following key elements:

- **Respect for Sensible Agreements:** Where a **"sensible agreement"** has been reached (such as between a local authority and a parent) that **"clearly protected the child"** and was found to be **"in no sense collusive,"** the court and professionals like the Children's Guardian should **"think long and hard"** before seeking to upset that agreement or putting forward contentious alternative proposals.

- **Determining the Extent of Investigation:** Even when parties are in agreement, the court has a duty to be satisfied by evidence before making an order. In determining the appropriate extent of judicial investigation, the court should take into account the circumstances of the case, including:

- **The interests of the children.**
- Whether **future litigation** is likely in which the disputed facts would be relevant.
- The **relevance of the disputed allegations** to the local authority's care plan and management of the case.
- The **time** likely to be spent and the **cost to public funds** of the investigation.
- The **likely evidential result** and the **emotional toll** of the court hearing.

- **The Role of the Guardian:** The Children's Guardian serves as the child's protection against poor social work practice, procedural delay, and collusive agreements. However, in line with the "no order" principle, the Guardian should not automatically seek to disrupt established, protective arrangements that serve the child's welfare.

This approach aligns with the **"no order" principle (Section 1(5) of the Children Act 1989)**, which dictates that a court should not make an order unless it is satisfied that doing so is **better for the child than making no order at all**. The underlying philosophy is that the court should not intervene in the parents' exercise of their parental responsibility unless it is **necessary and proportionate** to do so.

UnitA5 Summary

q1. What are the four key principles of the Children Act 1989?

The welfare principle, the no delay principle, no order principle, the welfare checklist

q2. What are the circumstances when a court 'shall' have regard to the welfare checklist in the Children Act 1989?

Under Section 1(4) of the Children Act 1989, the court is legally mandated to have regard to the "welfare checklist" in the following specific circumstances:

- Section 8 Orders: When the court is considering whether to make, vary, or discharge a Section 8 order (such as a Child Arrangements Order, Prohibited Steps Order, or Specific Issue Order), and that action is opposed by any party to the proceedings.
- Special Guardianship Orders: When the court is considering whether to make, vary, or discharge a Special Guardianship Order.
- Part IV Orders: When the court is considering whether to make, vary, or discharge any order under Part IV of the Act, which includes Care and Supervision orders.

q3. What guidance was given in *Yousef v The Netherlands* [2003] 1 FLR 210 in relation to the welfare principle?

In the case of *Yousef v The Netherlands* 1 FLR 210, the European Court of Human Rights (ECtHR) provided guidance regarding the application of the welfare principle when it conflicts with the rights of parents. According to the sources, the key guidance from this case is as follows:

- Paramountcy of the Child's Interests: In judicial decisions where the Article 8 rights (the right to respect for private and family life) of parents and those of a child are both at stake, the child's interests must remain the paramount consideration.
- Conflict of Rights: If any balancing of interests becomes necessary between the parents and the child, the child's interests must prevail.
- Precedence in Legal Applications: This principle is applied in domestic courts to establish that where the Article 8 rights of a parent conflict with those of a child, the rights of the child take precedence. This guidance is particularly relevant in high-stakes decisions, such as when a court is considering whether to terminate parental responsibility or make other significant orders regarding a child's upbringing

q4. What is meant by s.1(3)(g) Children Act 1989, where it states that the courts shall have regard to 'the range of powers available to the court under the Act in the proceedings in question'?

Under Section 1(3)(g) of the Children Act 1989, the court is required to have regard to "the range of powers available to the court under this Act in the proceedings in question". This ensures that judges and magistrates consider the full breadth of legal options to achieve the best outcome for the child

q5. What guidance did the court of appeal give in the case of *Re G (Children)* [2005] EWCA Civ 1283

when considering the principle of no order?

In the case of *Re G (Children)* EWCA Civ 1283 (reported as 1 FLR 771), the Court of Appeal provided specific guidance regarding the application of the "no order" principle under Section 1(5) of the Children Act 1989. According to the sources, the Court of Appeal established that:

- No Statutory Presumption: Section 1(5) does not create a presumption in favor of making an order or against making one.
- The Mandatory Question: The principle simply demands that before a court makes any order, it must explicitly ask: "Will it be better for the child to make the order than making no order at all?"

q6. What is the acronym 'Cafcass' short for?

Children and family court advisory and support service

q7. What is the role of the children's guardian? When and how is the children's guardian appointed?

The children's guardian is an officer of Cafcass appointed by the court to safeguard the interests of the child in specified proceedings (as defined by s.41(6) Children Act 1989), which includes applications for care and supervision orders, placement orders, emergency protection orders and secure accommodation. They have a duty to appoint a solicitor to represent the child, instruct the solicitor for the child on all matters relevant to the interests of the child and to give such advice to the child as is appropriate, having regard to the child's understanding (r.16.20 Family Procedure Rules (FPR) 2010). In addition, the guardian shall carry out all necessary investigations, advise the court on the matters set out in Part 3 of Practice Direction 16A – Representation of Children and file and serve a report, in accordance with the timetable set by the court, advising on the interests of the child.

The court appoints the guardian as soon as is practicable after the issue of specified proceedings, unless satisfied that such appointment is not necessary to safeguard the interests of the child (see r.12.6(a) FPR 2010). Appointment can be made with or without application being made. The court office will notify the Cafcass office that allocation of a guardian is required and provide details of the case concerned. Cafcass will then notify the court of the name of the guardian appointed.

q8. What is the role of the children's solicitor and how are they appointed?

The solicitor for the child represents the child in the proceedings and takes instructions from the guardian, unless the child gives instructions that conflict with the guardian (or there is no guardian) and the child is of sufficient understanding to give instructions on their own behalf. In default of instructions, the solicitor acts in furtherance of the best interests of the child (r.16.29(5) FPR 2010). It is the duty of the guardian to appoint a solicitor for the child. However, if no guardian is likely to be allocated shortly after issue, the court should appoint a solicitor for the child from the local list of Children Panel solicitors, in accordance with the guidelines for appointing solicitors for children, issued by the Law Society in 2007.

q9. What test must the court apply when considering whether it requires expert evidence in public law proceedings?

The Family Procedure (Amendment) (No 5) Rules 2012 came into force in January 2013. This amended the FPR 2010 significantly so that the test for the introduction of expert evidence was altered. Rule 25.1 states that:

Expert evidence will be restricted to that which in the opinion of the court is necessary to assist the

court to resolve the proceedings.

This is the test that the court must apply. The meaning of this test was further expanded in the case of *Re TG (A Child)* 2013 which is the leading case on the approach the court should follow when considering the necessity of expert evidence.

q10. What are the statutory powers and duties of the children and family reporter?

They are set out in r.16.33 FPR 2010 and Part 6 of Practice Direction 16A and include:

- filing report and serving on other parties
- notification to child of contents of report and recommendation, as appropriate, taking into account child's age and understanding
- explaining contents of report to child
- advising the court in respect of joining the additional parties

considering whether it is in best interests of child to be made a party to the proceedings and, if so, why.

q11. What statutory provision/case law assists in relation to the attendance of the children and family reporter at court?

- Para 9.4(a) Practice Direction 16A: the officer must attend hearings as directed by the court.
- Section 16 Criminal Justice and Court Services Act 2000 allows cross-examination of an officer of the Service. Rule 16.33(5) FPR 2010 adds that a party may question the officer about written or oral advice tendered by that officer to the court.

Cross-examination can be limited by the court to certain issues.

q12. An unrepresented litigant has the right to have reasonable assistance in court from a lay person. The *Practice Guidance: McKenzie Friends (Civil and Family Courts) July 2010* specifically states that certain factors should not outweigh the presumption in favour of allowing the assistance of a McKenzie Friend (MF). What are they?

See the *Practice Guidance: McKenzie Friends (Civil and Family Courts) July 2010*. This guidance is to be regarded as a reminder that the attendance of a MF will often be of advantage to the court in ensuring the litigant in person receives a fair hearing.

The following factors **should not** prevent a MF from acting (see para 12):

- The fact that proceedings are confidential and that the court papers contain sensitive information relating to the family's affairs.
- The fact that the litigant in person appears to be capable of conducting the case without the assistance of a MF.
- The fact that the litigant in person is unrepresented through choice.
- The fact that the objecting party is not represented.
- The fact that the hearing is a directions hearing or case management hearing.

The fact that the proposed MF belongs to an organisation that promotes a particular cause.

